

Competition Promotion and Market Protection Act, 2007

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Competition Promotion and Market Protection Act, 2063

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Amending Acts

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Act No. 35 of the Year 2063

An Act Made to Provide for Competition Promotion and Market Protection

Preamble: Whereas it is desirable to maintain fair competition among persons or firms producing or distributing goods or services to make the national economy more open, liberal, market-oriented and competitive; to increase national productivity by developing the commercial capacity of producers or distributors through fair competition; to provide protection to the market from undesirable interference; to control monopolies and restrictive trade practices to encourage the enhancement of the quality of produced goods and services and their delivery to consumers at competitive prices; and to make legal provisions to prevent potential unfair competition in trade practices and to maintain the economic interest and integrity of the general public,

The House of Representatives, in the first year of the issuance of the Proclamation of the House of Representatives, 2063, has enacted this Act. Chapter-1

Preliminary

1. Short Title, Extent and Commencement: (1) This Act may be called the "Competition Promotion and Market Protection Act, 2063".

(2) This Act shall extend throughout the State of Nepal, and if any person residing outside Nepal commits any act contrary to this Act, this Act shall also apply to such person.

(3) This Act shall come into force immediately. 2.

Definitions: Unless the subject or context otherwise requires, in this Act,- (a) "Chairperson" means the Chairperson of the Board. (b) "Firm" means any firm, company or organized institution producing or distributing goods or services, and the term shall also denote subsidiary firms, companies or institutions that are directly or indirectly under the control of, or affiliated with, such firm, company or institution. (c) "Board" means the Competition Promotion and Market Protection Board constituted pursuant to Section 12. (d) "Bid" means a proposal submitted by any person or firm in the format specified by a concerned institution or body for the purchase of any goods, construction or maintenance work, or procurement of any service, in response to a notice of such institution or body, sealed and stamped, and the term shall also include a quotation with details of unit price and related documents, or a rate quotation with rates. (e) "Advertisement" means

information publicly disseminated for the market promotion or publicity of any goods or services. (f) "Member" means a member of the Board, and the term shall also denote the Chairperson and the Member-Secretary of the Board. (g) "Agreement" means a contract, agreement, arrangement or understanding made in writing, orally or by conduct, whether enforceable under the prevailing law or not, between two or more persons or firms to do or not to do any act, and the term shall also denote a decision or recommendation made among such persons or firms. (h) "Court" means the Commercial Bench of a court designated by the Government of Nepal by publishing a notice in the Nepal Gazette, after consultation with the Supreme Court. (i) "Market Protection Officer" means a Market Protection Officer appointed pursuant to Section 22. (j) "Sale Price" means the price received for the production or distribution of any goods or services, including any type of rent, insurance, fee, interest rate, exchange rate, premium, or any other similar amount. (k) "Prescribed" or "as prescribed" means prescribed or as prescribed in the rules framed under this Act. Chapter-2 Acts Contrary to Fair Competition 3.

Not to Make Anti-competitive Agreement: (1) Any person or firm producing or distributing any goods or services shall not, alone or collectively, with the aim of limiting or restricting competition, make or cause to be made any agreement with any other person or firm producing similar types of goods or services, as follows:- (a) To directly or indirectly fix the purchase or sale price of any goods or services, or to determine the terms of purchase or sale of such goods or services, (b) To limit or restrict the market for the production or distribution of any goods or services, or to limit or restrict investment for technological development or advancement thereof, (c) To limit or restrict the wholesale quantity of production or distribution of any goods or services, or to reduce the retail consumption quantity or quality of such goods, (d) Not to sell or distribute such goods or services in a specific place, or to sell or distribute only in a specific place, (e) To promote the market only for goods or services produced or distributed by a specific person or firm, and not to purchase, sell or distribute goods or services of any other person or firm producing or distributing similar types of goods or services, or to prevent such goods or services from entering the market, (f) To divide markets among persons or firms producing or distributing any goods or services, (g) To produce or distribute any goods or services on a rotational basis, or to produce or distribute by fixing quotas for such goods or services, (h) Without reasonable cause, to fix different prices for the purchase, sale or distribution of any goods or services, or to impose different terms of purchase, sale or distribution, (i) To submit bids or quotations by mutual agreement in response to publicly invited bids or quotations, or to submit bids or quotations with equal amounts or other details, (j) To apply a syndicate system in the transportation or distribution of any goods or services, (k) To do or cause to do other acts as prescribed. (2) Notwithstanding anything contained in sub-section (1), amended by Some Nepal Acts Amendment Act, 2064, two or more persons or firms producing or distributing any goods or producing, distributing or operating any services shall not, in a manner contrary to sub-section (2), jointly with any institution or by adopting any other measures, make any kind of agreement which prevents any other person or firm from producing, distributing or operating such goods or services in the area where they themselves produce, distribute or operate, or which requires affiliation with such person or institution or engagement in such measures for producing, distributing or operating such goods or services, or which necessitates compliance with any condition set by such agreement or measures. (3) Any agreement made contrary to sub-section (2) shall be void ab initio.

4. Not to Abuse Dominant Position: (1) Any firm having a dominant position shall not, by itself or through its affiliated bodies, while producing or distributing any goods or services, abuse or cause to be abused such position with the aim of restricting competition. Explanation: For the purpose of this section, "dominant position" means a position occupied by a person or firm producing or distributing any goods or services, either alone or jointly with other firms producing or distributing goods or services of a similar nature, holding

at least forty percent or more of the annual production or distribution of such goods or services within the State of Nepal, or a position enabling such firm, alone or jointly with other persons or firms producing or distributing goods or services of a similar nature, to influence the relevant market or to unilaterally implement its decisions.

(2) Notwithstanding anything contained in sub-section (1), amended by Some Nepal Acts Amendment Act, 2064, any firm having a dominant position shall be deemed to have abused its dominant position if it does any of the following acts throughout the State of Nepal or in any area of the State of Nepal:-

(a) To create obstacles or restrictions on the market entry of goods or services produced or imported by any other person or firm producing or distributing goods or services of a similar nature,

(b) Without reasonable cause, to limit or restrict the production or distribution of any goods or services in a manner that may reduce supply in the market, or to limit or restrict investment for the development of technology relating to the production or distribution of such goods or services,

(c) Without reasonable cause, to fix different purchase or sale prices for any goods or services in the market of the same geographical area, or to impose additional terms for the purchase or sale of such goods or services,

(d) To fix prices for goods or services produced or distributed by itself, directly or indirectly, in a manner that prevents competition in the market:

Provided that nothing in this clause shall be deemed to adversely affect the right of the concerned firm to fix the price of such goods or services or to alter the price of such goods or services, with prior approval from the Government of Nepal or an authority empowered by prevailing law.

(e) Without reasonable cause, to reduce the quantity or deteriorate the quality of goods or services produced or distributed by itself, adversely affecting consumers,

(f) While producing or distributing any goods or services, to impose conditions unrelated to or unnecessary for such goods or services.

(3) Notwithstanding anything contained in sub-section (2), doing any of the following acts shall not be deemed an abuse of dominant position if it is proven that such act was done in accordance with that sub-section:-

(a) If any person or firm having a dominant position undertakes any action to enhance the quality or improve the technical level of goods or services it has been producing or distributing, and if the benefit derived from such action is in the interest of consumers of such goods or services,

(b) If such action is taken for the protection or use of any intellectual property right lawfully acquired by any person under the prevailing law.

(4) For the purpose of this section, the Board shall prepare a list of firms having a dominant position in producing or distributing various goods or services and publish it publicly from time to time.

(5) Until such list under sub-section (4) is amended, such firms shall be deemed to continue to hold a dominant position.

5. Not to Merge or Amalgamate Firms with the Aim of Restricting Competition: A firm producing or distributing any goods or services shall not, with the aim of creating a monopoly or establishing a restrictive trade

practice in the market, merge or amalgamate with any other firm producing or distributing goods or services of a similar nature, or purchase fifty percent or more of the shares of such firm, or take over the business of such firm, either alone or jointly with its subsidiary firm. Explanation: For the purpose of this section, if a person or firm producing or distributing goods or services of the same nature merges, amalgamates, purchases shares of, or takes over another such firm, and as a result the production or distribution of such goods or services exceeds forty percent of the total production or distribution within the State of Nepal, the merger, amalgamation or takeover shall be deemed to have been made with the aim of restricting competition. 6. Not to Engage in Irregularities in Bidding: (1) A bidder submitting a bid in response to a publicly invited bid by any body shall not cause or engage in any irregularity in the bidding by doing any of the following acts:-

(a) By agreeing to cause a bidder not to submit a bid, or to have only one bidder submit a bid, or to have all bidders submit bids with the same price or other details, directly or indirectly,

(b) By informing each other among bidders of the notices or other matters required to be opened before submitting bids,

(c) By submitting bids after mutually agreeing that a particular bidder's bid would be accepted.

(2) Notwithstanding anything elsewhere in this section, the exchange of information regarding bids between a firm and its subsidiary firm shall not be deemed an irregularity under sub-section (1). 7. Not to Engage in Exclusive Dealing: (1) A person or firm producing or distributing any goods or services shall not cause or engage in exclusive dealing for the production or distribution of such goods or services.

Explanation: For the purpose of this section, if a firm produces or distributes any goods or services subject to any of the following conditions, it shall be deemed to have engaged in exclusive dealing:- (a) Not to purchase goods or services of a similar nature produced or distributed by any other person or firm, or not to engage in any related transaction with such person or firm, except for the goods or services produced or distributed by the person or firm imposing the condition, (b) To supply goods or services on more favorable conditions if the condition under clause (a) is complied with and the purchase, sale or transaction of goods or services is conducted accordingly. (2) Notwithstanding anything contained in sub-section (1), if a firm has an arrangement to obtain any goods or services only from its principal or subsidiary firm, or to distribute its goods or services through its authorized dealers or agencies, it shall not be deemed to have engaged in exclusive dealing. 8. Not to Restrict the Market: A person or firm producing or distributing any goods or services shall not cause or engage in any transaction that restricts the market for the production or distribution of such goods or services. Explanation: If a person or firm producing or distributing any goods or services provides such goods or services to any seller, dealer, trader or firm subject to a condition that they may only produce or distribute such goods or services in a specific market designated by such person or firm, or that if they distribute such goods or services in any place other than the designated market, they shall be liable for compensation for damages, such action shall be deemed to have restricted the market. 9. Not to Engage in Tied Selling: A person or firm selling any goods or services shall not engage in tied selling transactions.

Explanation: For the purpose of this section, if a person or firm sells or distributes any goods or services subject to any of the following conditions, it shall be deemed to have engaged in tied selling:- (a) When purchasing any goods or services, to also purchase another goods or services produced or distributed by such person or firm or by any other person or firm designated by them, (b) That the goods or services purchased under clause (a) shall not be used or sold or distributed with goods or services produced or

distributed by any other person or firm other than the person or firm producing or distributing such goods or services or their designee, (c) To distribute such goods or services on more favorable conditions if the condition under clause (a) or (b) is complied with for the use or sale or distribution of any goods or services.

10. Not to Make Misleading Advertisements: A person or firm producing or distributing any goods or services shall not cause or make misleading advertisements with the aim of restricting or limiting competition. Explanation: For the purpose of this section, if a person or firm does any of the following acts, it shall be deemed to have made a misleading advertisement:- (a) Advertising by providing misleading or false details differing from the actual quality, quantity or price of goods or services, (b) Promoting the market by making false or misleading advertisements regarding the warranty, benefit, quality or lifespan of goods or services, (c) Making false or misleading advertisements against the market for goods or services produced or distributed by any person or firm, or adverse to such goods or services, (d) Selling or distributing goods or services at a price higher than that mentioned in the advertisement.

11. When this Act Not to Apply: Notwithstanding anything elsewhere in this Chapter, except for the provision of Section 10, this Act shall not apply to the following trade or commercial activities:- (a) Businesses relating to micro and cottage industries under the Industrial Enterprises Act, 2076, (b) Agricultural products produced by small farmers and agricultural cooperative businesses as prescribed, (c) amended by Some Nepal Acts Amendment Act, 2082. Purchasing of raw materials, (d) Export business, (e) Activities conducted for the labor right of collective bargaining, (f) Research and development related activities, (g) Management related cooperation, (h) Cooperation for organizational and procedural improvements aimed at enhancing commercial capacity.

Chapter-3 Formation, Functions, Duties and Powers of the Board 12.

Formation of the Board: (1) A Competition Promotion and Market Protection Board is constituted to protect the market and enhance fair competition in the market. (2) The Board under sub-section (1) shall consist of the following members:- (a) Secretary, Ministry of Industry, Commerce and Supplies - Chairperson (b) Representative, Ministry of Law, Justice and Parliamentary Affairs - Member (c) Representative, Ministry of Finance - Member (d) Representative, Ministry of Industry, Commerce and Supplies - Member (e) Two persons nominated by the Government of Nepal from among persons working in associations or organizations related to industry and commerce - Member (f) Four persons nominated by the Government of Nepal, including at least one woman, from among persons working in associations or organizations related to consumer rights and interests - Member (g) Director General, Department of Commerce - Member-Secretary (3) The term of office of nominated members under sub-section (2) shall be two years. (4) Notwithstanding anything contained in sub-section (3), if the work of any nominated member is not found satisfactory, the Government of Nepal may, at any time, remove him/her from the membership of the Board by stating the reasons therefor.

13. Meeting and Decision of the Board: (1) Meetings of the Board shall be held as required. (2) The meeting of the Board shall be held on such date, time and place as specified by the Chairperson. (3) If more than fifty percent of the total number of members of the Board are present, the meeting shall be deemed to have a quorum. (4) The meeting of the Board shall be presided over by the Chairperson, and in his/her absence, a member chosen by the members present from among themselves shall preside over the meeting. (5) The decision of the majority shall be binding in a meeting of the Board, and in case of a tie, the person presiding over the meeting shall have a casting vote. (6) The decision of the Board shall be certified by the Member-Secretary of the Board. (7) If the Board deems necessary, it may invite experts on the relevant subject to participate in the meeting of the Board as observers. (8) Other procedures relating to the meetings of the Board shall be as determined by the Board itself.

14.

Functions, Duties and Powers of the Board: In addition to the functions, duties and powers mentioned elsewhere in this Act, the functions, duties and powers of the Board shall be as follows:- (a) To formulate

policies to be adopted in relation to maintaining fair competition and submit them to the Government of Nepal, (b) To review competition-related laws if deemed necessary and suggest necessary improvements to the Government of Nepal, (c) To raise public awareness about the positive impact of fair competition on the economy and the negative impact of activities contrary to fair competition, (d) To provide necessary suggestions to the Government of Nepal regarding the economic situation of the country, trade conditions, fair competition in the market, and work to be done for enhancing consumer interests, (e) To identify problems seen in enhancing fair competition in the market and suggest solutions to the concerned bodies, (f) To collaborate with the private sector for the promotion of fair competition in the market, (g) To conduct or cause to conduct necessary studies and research regarding the promotion of fair competition in the market, (h) To prepare and implement an action plan for the promotion of fair competition, (i) To inspect, monitor and investigate whether any acts contrary to fair competition are being committed by anyone, (j) If, during inspection, monitoring or investigation under clause (i), it appears that any act contrary to fair competition is about to be committed, to immediately stop such act, (k) To form committees as necessary for matters to be performed by itself, (l) To perform or cause to perform other necessary acts in relation to maintaining fair competition. 15. Meeting Allowance: The Chairperson and members shall receive meeting allowance as prescribed for participating in the meetings of the Board. 16. Secretariat of the Board: The Department of Commerce shall function as the secretariat of the Board. Chapter-4 Provisions Relating to Offenses and Penalties 17. Deemed to have Committed Offense Contrary to Fair Competition: If any person or firm does or causes to do any act contrary to Chapter-2, such person or firm shall be deemed to have committed an offense contrary to fair competition. 18.

Penalty: (1) A person or firm committing or causing to commit the following acts shall be liable to the following penalties according to the gravity of the offense:- (a) For committing or causing to commit any act contrary to Section 3, 4 or 5, such act shall be void, and the person or firm committing or causing to commit such act shall be liable to a fine of up to five hundred thousand rupees, (b) For committing or causing to commit any act contrary to sub-section (1) of Section 6, such act shall be void, and the person or firm committing or causing to commit such act shall be liable to a fine of up to three hundred thousand rupees, (c) For committing or causing to commit any act contrary to Section 7, the person or firm committing or causing to commit such act shall be liable to a fine of up to one hundred thousand rupees, (d) For committing or causing to commit any act contrary to Section 8, the person or firm committing or causing to commit such act shall be liable to a fine of up to fifty thousand rupees, (e) For committing or causing to commit any act contrary to Section 9 or 10, the person or firm committing or causing to commit such act shall be liable to a fine of up to twenty-five thousand rupees, (f) For committing or causing to commit any act contrary to this Act or the rules framed under this Act, other than those mentioned in clauses (a), (b), (c), (d) and (e), the person or firm shall be liable to a fine of up to ten thousand rupees. (2) If a person or firm penalized under sub-section (1) again commits any offense under this Act, such person or firm shall be liable to a fine double the amount of the fine under that sub-section. (3) If any act under sub-section (1) is done pursuant to an agreement, such agreement shall also be void. (4) If any person is found to have filed a false complaint with the intent to cause loss or damage or to harass any person or firm, such person shall be liable to a fine of up to ten thousand rupees. 19.

Penalty for Obstructing: If any person obstructs any investigation or inquiry relating to an offense under this Act, the Court may, on the basis of the report of the Market Protection Officer, impose a fine of up to twenty-five thousand rupees on such person. 20. Deemed to have Committed Offense by Person in Charge: If any firm, company or organized institution does any act deemed an offense under this Act, in the case of a firm, the partners existing at the time of such act, and in the case of a company or organized institution, the

person in charge of such company or institution, shall be deemed to have committed such offense. Provided that if it is proved that such act was done before the appointment of the person in charge, or that the decision to do such act was made without the consent of the person in charge, the person who actually committed such act shall be deemed to have committed the offense. Explanation: For the purpose of this section, "person in charge" means the Chairperson, member of the board of directors, General Manager, Managing Director, or any person working in a similar capacity of a company or organized institution. 21. Remission of Penalty: (1) If, during the investigation or inquiry of any offense, any person or firm related to such offense provides assistance as follows, the Market Protection Officer may, while filing the case, request the Court to remit the penalty under Section 18 in whole or in part for such person or firm:- (a) If information or notice about such offense is provided before the commencement of the investigation or inquiry, (b) If significant evidence or information that the investigating officer could not discover during the investigation or inquiry is provided, (c) If any other special assistance is rendered in the investigation or inquiry work. (2) If the request for remission of penalty made by the Market Protection Officer under sub-section (1) appears reasonable, the Court may remit the penalty that may be imposed under this Act, in whole or in part, on the person or firm committing the offense. (3) Notwithstanding anything contained in sub-section (2), a person or firm involved in an offense shall not be entitled to remission from the liability to pay compensation under Section 29. Chapter-5 Provisions Relating to Investigation and Prosecution of Cases 22.

Appointment of Market Protection Officer: (1) For the purpose of investigating and inquiring into offenses punishable under this Act and filing cases in Court, the Government of Nepal shall, by publishing a notice in the Nepal Gazette, designate an officer employee as a Market Protection Officer in the required districts of the State of Nepal. (2) The qualifications and other functions, duties and powers of the Market Protection Officer shall be as prescribed. 23. May File Complaint: (1) If any person or firm does any act contrary to this Act, any person who obtains knowledge thereof may file a complaint before the Board or the Market Protection Officer, along with the information or evidence in his/her possession, as prescribed. (2) If the person filing a complaint under sub-section (1) wishes to keep his/her name confidential, the name of such person shall be kept confidential. 24. Investigation and Prosecution of Case: (1) If a complaint is received under Section 23 regarding any offense punishable under this Act, or if the Market Protection Officer becomes aware of such matter through any other means, the Market Protection Officer shall investigate and inquire into such case. (2) Notwithstanding anything contained in sub-section (1), if a complaint regarding any offense punishable under this Act is received by the Board under Section 23, the Board may forward such complaint to any Market Protection Officer for necessary action, or may form a sub-committee and cause an investigation and inquiry into such complaint by itself. (3) If the person filing a complaint under Section 23 provides additional evidence or information during the course of the investigation or inquiry into the offense, the officer conducting the investigation or inquiry shall consider such evidence or information as well while conducting the investigation or inquiry. (4) If a case is investigated or inquired into by a sub-committee under sub-section (2), after the completion of such investigation or inquiry, the Board shall order any Market Protection Officer to file the case in the Court. (5) The Market Protection Officer shall file the case in the Court within thirty-five days from the date of completion of the investigation or inquiry under sub-section (1) or from the date of receiving an order to file the case from the Board under sub-section (4). (6) While filing a case under sub-section (5), the Market Protection Officer shall obtain the opinion of the Government Attorney. (7) The pleading, argument and defense of a case filed in the Court under sub-section (5) shall be conducted by the Government Attorney. 25.

May Conduct Inspection, Examination or Search: (1) If there is reasonable cause to believe that any person is doing any act contrary to this Act or the rules framed under this Act, or if a complaint under Section 23 is

received in this regard, the Market Protection Officer or a sub-committee formed by the Board may conduct inspection, examination or search of the concerned place. (2) The procedure to be adopted while conducting inspection, examination or search under sub-section (1) shall be as prescribed. 26. Government of Nepal to be Plaintiff: A case involving an offense under this Act shall be prosecuted by the Government of Nepal as plaintiff. 27. May Seek Expert Assistance: If, due to the nature and seriousness of an offense, the assistance of an expert in the relevant subject is required for the investigation or inquiry of such offense, the investigating sub-committee or the Market Protection Officer may utilize the services of such expert. 28. Proceedings and Disposal of Case: (1) The Court shall have the authority to conduct proceedings and dispose of cases under this Act. (2) While conducting proceedings and disposing of a case filed under this Act, the Court shall adopt the procedure under the Summary Procedure Act, 2028. Chapter-6 Miscellaneous 29. Compensation: (1) If any person suffers any kind of loss or damage due to the commission of any offense under this Act by any person or firm, such person may submit an application to the Court for compensation for such loss or damage. (2) While proceeding on an application filed under sub-section (1), if it appears that compensation is payable, the Court shall determine the loss or damage and cause the person or firm causing such loss or damage to pay compensation to the applicant. 30. Special Power of the Government of Nepal: Notwithstanding anything elsewhere in this Act, if a crisis arises or appears likely to arise in the production or distribution of any goods or services throughout the State of Nepal or in any specific area of the State of Nepal, or considering the state of supply and distribution of any goods or services, the Government of Nepal may, by publishing a notice in the Nepal Gazette, issue necessary orders to the effect that anything mentioned in Chapter-2 shall not apply within the period and area specified in that notice. Provided that any arrangement and order relating to supply and distribution made by the Government of Nepal before the commencement of this Act shall be deemed to have been made under this Act. 31.

May Order to Stop Act: If the Court is informed by the Market Protection Officer or the Board, and is satisfied, that unless any act about to be done contrary to this Act is immediately stopped, a serious adverse condition may immediately be created in the supply or distribution of any goods or services in the market, the Court may order to immediately stop such act. 32. May Make Provision to Prevent Misuse of Intellectual Property: If the owner of any intellectual property, by misusing his/her intellectual property, obstructs fair competition or acts contrary to the rights and interests of consumers, the Government of Nepal may make necessary provisions in this regard. 33. Not to Bar Proceedings under Prevailing Law: If any act deemed an offense under this Act is also deemed an offense under other prevailing law, nothing in this Act shall be deemed to bar proceedings under such law. 34. May Provide Reward: If information provided to the Board or the Market Protection Officer regarding any person having committed or about to commit an offense contrary to this Act is found to be true upon final disposal of the case by the Court, the Board may provide a suitable reward to such informant. 35. Duty to Provide Assistance: It shall be the duty of all concerned to provide necessary assistance to the Board, a sub-committee formed by the Board, or the Market Protection Officer while conducting investigations or inquiries relating to offenses under this Act. 36. Confidentiality of Information: While conducting inspection, monitoring, investigation or inquiry under this Act, the Board or the Market Protection Officer shall keep confidential the commercial transactions and information obtained by them. Provided that mentioning any matter in the course of performing their duties or disclosing information of public importance shall not be deemed a breach of confidentiality. 37. Delegation of Powers: The Board may, as necessary, delegate some of the powers vested in it to the Chairperson, Member, Member-Secretary, a committee formed under this Act, or any officer employee of the Government of Nepal. 38. Annual Report: (1) The Board shall submit an annual report of its activities to the Government of Nepal within sixty days from the date of expiry of each fiscal year. (2) The Government of Nepal may make public the annual report submitted

under sub-section (1). 39. Power to Frame Rules: The Government of Nepal may frame necessary rules for implementing the objectives of this Act.